

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Lands Clauses Consolidation Act, 1845	8 & 9 Vict. c. 18.
Prevention of Crimes Act, 1871	34 & 35 Vict. c. 112.
Prison Act, 1877	40 & 41 Vict. c. 21.
Local Government Act, 1888	51 & 52 Vict. c. 41.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Criminal Appeal Act, 1907	7 Edw. 7. c. 23.
Mental Deficiency Act, 1913	3 & 4 Geo. 5. c. 28.
Police Pensions Act, 1921	11 & 12 Geo. 5. c. 31.
Children and Young Persons Act, 1933	23 & 24 Geo. 5. c. 12.
Firearms Act, 1937	1 Edw. 8. & 1 Geo. 6. c. 12.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
Criminal Justice Act, 1948	11 & 12 Geo. 6. c. 58.
Consolidation of Enactments (Procedure) Act, 1949	12, 13 & 14 Geo. 6. c. 33.
Courts-Martial (Appeals) Act, 1951	14 & 15 Geo. 6. c. 46.

CHAPTER 53

Housing Act, 1952

ARRANGEMENT OF SECTIONS

Section

1. Increases in exchequer, etc. contributions and sums credited to housing repairs accounts.
2. Contributions and grants for houses occupied under contracts of service.
3. Disposal of houses by local authorities.
4. Enforcement of conditions of disposal of houses.
5. Power to acquire land for shops, recreation grounds and other ancillary purposes.
6. Exchequer equalisation grant.
7. Interpretation, short title, citation and extent.

SCHEDULE.—Contributions for flats on expensive sites.

An Act to increase the amounts of the annual exchequer, rate fund and county council contributions under the Housing (Financial and Miscellaneous Provisions) Act, 1946; to enable contributions under section three of the Housing (Financial Provisions) Act, 1938, to be made in respect of houses occupied under contracts of service by members of the agricultural population, and to amend section twenty-three of the Housing Act, 1949, in relation to dwellings so occupied; to amend section seventy-nine of the Housing Act, 1936, in relation to sales and leases of houses by local authorities and to extend the powers of local authorities to acquire land under Part V of that Act; and for purposes connected with the matters aforesaid.

[1st August, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Increases in
exchequer, etc.
contributions
and sums
credited to
housing
repairs
accounts.

1.—(1) In relation to houses completed after the twenty-eighth day of February, nineteen hundred and fifty-two, the provisions of the Housing (Financial and Miscellaneous Provisions) Act, 1946, shall have effect subject to the following amendments, that is to say—

- (a) in section two (which prescribes the general standard amount of annual exchequer contributions), for the words "sixteen pounds ten shillings" there shall be substituted the words "twenty-six pounds fourteen shillings";
- (b) in subsection (1) of section three (which prescribes the amount of the said contributions in respect of certain houses provided for the agricultural population, and defines that amount as the special standard amount), for the words "For a house" there shall be substituted the words "If the Minister thinks fit so to determine in the case of any house", and for the words "twenty-five pounds ten shillings" there shall be substituted the words "thirty-five pounds fourteen shillings";
- (c) in subsection (3) of section five (which prescribes the normal amount of annual rate fund contributions), for the words "five pounds ten shillings" there shall be substituted the words "eight pounds eighteen shillings";

- (d) in subsection (4) of section five (which prescribes the normal amount of annual rate fund contributions for a house in respect of which the annual exchequer contribution is the special standard amount) and in section eight (which prescribes the amount of annual county council contributions in respect of such houses), for the words "one pound ten shillings" there shall be substituted the words "two pounds ten shillings";
- (e) in the First Schedule, for the Table set out in Part II and the Table set out in Part III (which specify the amounts of contributions for flats on expensive sites) there shall be substituted respectively the Table set out in Part I and the Table set out in Part II of the Schedule to this Act.

(2) In relation to houses completed as aforesaid, section thirty-eight of the Housing Act, 1949 (which increases the amounts of contributions for houses on expensive sites) shall have effect as if in paragraph (a) of subsection (1) for the words "one pound and four shillings" there were substituted the words "two pounds five shillings".

(3) Section one hundred and thirty-one of the Housing Act, 1936 (which, as amended by section twenty-one of the Act of 1946, requires certain local authorities to carry sums to the credit of the Housing Repairs Account in each financial year) shall have effect, in relation to the financial year beginning on the first day of April, nineteen hundred and fifty-two and each subsequent financial year, as if for the words "four pounds" there were substituted the words "eight pounds".

2.—(1) Subsection (3) of section thirteen of the Act of 1946 (which prohibits the making of a contribution under section three of the Housing (Financial Provisions) Act, 1938, for any year during which a house is occupied otherwise than by its owner or a tenant) shall cease to have effect. Contributions and grants for houses occupied under contracts of service.

(2) Paragraph (b) of subsection (1) of section twenty-three of the Housing Act, 1949 (which requires that a dwelling in respect of which an improvement grant has been made under section twenty of that Act must be let or kept available for letting except when occupied as mentioned therein) shall not apply to a dwelling which is for the time being occupied by a member of the agricultural population in pursuance of a contract of service.

(3) No contribution shall be payable under section three of the Housing (Financial Provisions) Act, 1938, in respect of a house completed after the seventeenth day of April, nineteen hundred and forty-six, for any year during which the house is at any time occupied in pursuance of a contract of service by a member of the agricultural population unless the condition set out

in subsection (4) of this section, so far as applicable to the house at any time during that year, is complied with; and in relation to any dwelling in respect of which an improvement grant has been made, whether before or after the passing of this Act, under section twenty of the Housing Act, 1949, being a dwelling which is for the time being occupied as aforesaid, section twenty-three of the said Act of 1949 shall have effect as if that condition were included among the conditions specified in subsection (1) of that section.

(4) The condition referred to in subsection (3) of this section is that if the contract is determined—

- (a) by less than four weeks' notice given by the employer;
- (b) by dismissal of the employee without notice; or
- (c) by the death of either party,

the employer or his personal representative will permit the employee (or, in the case of his death, any person residing with him at his death) to continue to occupy the house or dwelling free of charge from the determination of the contract until the expiration of a period of four weeks beginning with the date on which the notice is given or, if the contract is determined otherwise than by notice, with the date on which it is determined.

(5) In this section "occupied" means occupied otherwise than by a tenant; and "occupy" shall be construed accordingly.

Disposal of
houses by local
authorities.

3.—(1) Subsection (3) of section seventy-nine of the Housing Act, 1936 (which requires local authorities, on disposing of land or houses under that section, to obtain the best price or the best rent) shall cease to have effect in relation to houses and in relation to land sold or leased with houses.

(2) For the purposes of paragraph (d) of subsection (1) of the said section seventy-nine (which enables local authorities to sell or lease houses with the consent of the Minister) the consent of the Minister may be given generally either to all local authorities or to any local authority or authorities and either in relation to all houses or to any house or houses, and may be given subject to such conditions as the Minister thinks expedient as to the price or rent to be obtained or otherwise as to the exercise of any powers of the authority under the said section seventy-nine or this section in connection with the sale or lease.

(3) On the sale of a house in accordance with the said paragraph (d), a local authority may in any case, and shall if so required by the Minister, impose conditions—

- (a) limiting the price at which the house may be sold or the rent at which it may be let during any period not exceeding five years from the completion of the sale;

- (b) precluding the purchaser (including any successor in title of his and any person deriving title under him or any such successor) from selling or letting the house during any such period unless he has notified the authority of the proposed sale or letting and offered to resell or sell the house to them and the authority have refused the offer or have failed to accept it within one month after it is made, and prescribing or providing for the determination of the price to be paid in the event of the acceptance of such an offer;

and for the purposes of the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, the rent specified in any such condition in respect of a house shall be the standard rent of the house.

(4) In the said paragraph (d), after the words "in regard to the" there shall be inserted the words "maintenance or", after the word "sale" there shall be inserted the words "or on the grant of any such lease" and after the word "price" there shall be inserted the words "or any premium".

(5) Section eighty-six of the Housing Act, 1936 (which provides for the reduction of exchequer and rate fund contributions on the sale of houses by local authorities) shall apply in relation to the grant of a lease under section seventy-nine of that Act as it applies in relation to a sale, and the power of the Minister to reduce any contribution under that section shall include power to suspend or discontinue the payment of that contribution.

4.—(1) Where a house has been sold by a local authority subject to any such condition as is mentioned in paragraph (a) of subsection (3) of section three of this Act, the following enactments, that is to say:—

Enforcement
of conditions
of disposal of
houses.

- (a) section seven of the Building Materials and Housing Act, 1945 (which, as amended by section forty-three of the Housing Act, 1949, imposes penalties for breach of certain conditions of building licences);
- (b) paragraphs (a) and (b) of subsection (3) and subsection (4) of section nine of that Act (which contain supplementary provisions for ascertaining when a house is sold or let or sold or let at an excessive price or rent); and
- (c) subsection (6) of section forty-three of the Housing Act, 1949 (which relates to the jurisdiction of justices to try offences under the said section seven),

shall apply as if the house were constructed under the authority of a building licence granted subject to the like condition, and for that purpose shall have effect as if for the reference in the said section seven (as amended as aforesaid) to the period of

eight years beginning with the passing of the said Act of 1945 there were substituted a reference to the period specified in the condition.

(2) For the purposes of any such condition as aforesaid limiting the rent at which a house may be let, and of any enactment applied to such a house by subsection (1) of this section, the house shall not be deemed to be let at a rent exceeding the rent specified in the condition unless it is let at a rent exceeding the recoverable rent under the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939.

(3) Where any such condition as is mentioned in paragraph (a) or paragraph (b) of subsection (3) of section three of this Act is imposed on the sale of a house by a local authority, the condition shall be registered in the register of local land charges by the proper officer of the local authority in such manner as may be specified by rules made for the purposes of this section under subsection (6) of section fifteen of the Land Charges Act, 1925, but without prejudice to the registration under section ten of that Act of any condition being an estate contract within the meaning of that Act.

Power to acquire land for shops, recreation grounds and other ancillary purposes.

5. The power of a local authority to acquire land under Part V of the Housing Act, 1936, shall include power to acquire land (including houses or other buildings) proposed to be used for any purpose authorised by section eighty of that Act or section seven of the Housing Act, 1949 (which confer additional powers in connection with the provision of housing accommodation), whether or not that land forms part of a site for the erection of houses.

Exchequer equalisation grant.

6. There shall be defrayed out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums payable out of moneys so provided under Part I of the Local Government Act, 1948.

Interpretation, short title, citation and extent.

7.—(1) In this Act “the Act of 1946” means the Housing (Financial and Miscellaneous Provisions) Act, 1946, and expressions used in that Act and this Act have the same meaning as in that Act.

(2) Any reference in this Act to any enactment is a reference to that enactment as amended by any subsequent enactment including this Act.

(3) This Act may be cited as the Housing Act, 1952, and the Housing Acts, 1936 to 1949 and this Act may be cited together as the Housing Acts, 1936 to 1952.

(4) This Act shall not extend to Scotland or to Northern Ireland.

SCHEDULE

Section 1.

CONTRIBUTIONS FOR FLATS ON EXPENSIVE SITES

PART I

Table

Cost per acre of site as developed	Standard amount of annual exchequer contribution	Normal amount of annual rate fund contribution
	£ s. d.	£ s. d.
More than £1,500 but not more than £4,000.	52 16 0	17 12 0
More than £4,000 but not more than £5,000.	54 9 0	18 3 0
More than £5,000 but not more than £6,000.	55 10 0	18 10 0
More than £6,000 but not more than £8,000.	57 0 0	19 0 0
More than £8,000 but not more than £10,000.	58 19 0	19 13 0
More than £10,000 but not more than £12,000.	60 18 0	20 6 0
More than £12,000 ...	£60 18s. 0d. increased by £1 19s. 0d. for each additional £2,000 or part of £2,000 in the cost per acre of the site as developed.	£20 6s. 0d. increased by 13s. 0d. for each additional £2,000 or part of £2,000 in the cost per acre of the site as developed.

PART II

Table

Cost per acre of site as developed	Standard amount of annual exchequer contribution	Normal amount of annual rate fund contribution
	£ s. d.	£ s. d.
More than £1,500 but not more than £4,000.	63 6 0	22 17 0
More than £4,000 but not more than £5,000.	64 19 0	23 8 0
More than £5,000 but not more than £6,000.	66 0 0	23 15 0
More than £6,000 but not more than £8,000.	67 10 0	24 5 0
More than £8,000 but not more than £10,000.	69 9 0	24 18 0
More than £10,000 but not more than £12,000.	71 8 0	25 11 0

SCH.
—cont.

Cost per acre of site as developed	Standard amount of annual exchequer contribution	Normal amount of annual rate fund contribution
More than £12,000	£71 8s. 0d. increased by £1 19s. 0d. for each additional £2,000 or part of £2,000 in the cost per acre of the site as developed.	£25 11s. 0d. increased by 13s. 0d. for each additional £2,000 or part of £2,000 in the cost per acre of the site as developed.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Land Charges Act, 1925	15 & 16 Geo. 5. c. 22.
Housing Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 51.
Housing (Financial Provisions) Act, 1938 ...	1 & 2 Geo. 6. c. 16.
Building Materials and Housing Act, 1945...	9 & 10 Geo. 6. c. 20.
Housing (Financial and Miscellaneous Provisions) Act, 1946	9 & 10 Geo. 6. c. 48.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Housing Act, 1949	12, 13 & 14 Geo. 6. c. 60.

CHAPTER 54

Town Development Act, 1952

ARRANGEMENT OF SECTIONS

Definition of town development

Section

1. Definition of town development.

Contributions to council of receiving district from the Exchequer and local authorities benefited

2. Exchequer contributions to council of receiving district.
3. Conditions of payment of Exchequer contributions.
4. Local authorities' contributions to council of receiving district.

Extension for purposes of town development of certain powers of council of receiving district

5. Authorisation of council of receiving district to exercise their powers for benefit of other areas.
6. Additional powers of acquiring land.

Participation in town development of authorities other than council of receiving district

7. Authorities eligible to participate.
8. Provision for participation by agreement.
9. Provision for participation under order of the Minister.
10. Contributions to authorities participating from the Exchequer and local authorities benefited.